

Violation	Points
Speeding MPH not specified	3
Speeding MPH over posted limit:	
1 to 10	3
11 to 20	4
21 to 30	6
31 to 40	8
More than 40	11
Reckless driving	5
Passing a stopped school bus	5
Inadequate brakes	4
Following too closely (tailgating)	4
Use of mobile telephone or portable electronic device while operating a motor vehicle	5

Note: Insurance companies can have their own point systems. These have no relationship to and should not be confused with the DMV point system.

The point values charged against your record are from the date you commit the violation, not the date you are convicted. If you get 11 or more points within 18 months, you will be notified by mail that your driver license will be suspended. You can request a DMV hearing only to show that the convictions in question were not yours. You cannot re-argue the convictions or request the suspension be waived based on special circumstances.

You can reduce your point total by up to four points and save up to 10 percent on your auto liability and collision insurance premiums by taking a DMV-approved “Motor Vehicle Accident Prevention Course.” Completion of a point reduction course cannot prevent a mandatory suspension or revocation or be applied as a “credit” against future points, or prevent or reduce a Driver Responsibility Assessment by the DMV.

TRAFFIC CRASHES

At this time, except where required by law, the term “accident” is frequently replaced by “crash.” This is because a “crash” can normally be prevented. If you are involved in a traffic crash in which another person is killed, your license can be suspended or revoked after a DMV hearing even if you were not charged with a violation when the incident occurred.

Violation	Points
Improper passing, unsafe lane change, drove left of center, or drove wrong direction	3
Violation involving a traffic signal, stop sign or yield sign	3
Failing to yield right-of-way	3
Railroad crossing violation	5
Leaving scene of incident involving property damage or injury to domestic animal	3
Safety restraint violation involving person under 16	3
Inadequate brakes (while driving employer's vehicle)	2
Any other moving violation	2

FEES AND CIVIL PENALTIES

In most cases, if your driver license has been suspended for an exact period, like 30 days or 90 days, your license will not be returned until you pay a non-refundable \$50 suspension termination fee. If your license was suspended as a result of the Zero Tolerance Law, you will be required to pay a \$125 civil penalty and a \$100 suspension termination fee.

In most cases, if your driver license has been revoked, you cannot apply for a new license until you pay a non-refundable \$100 fee to reapply for the license. This fee is not required if your license was revoked for operating without insurance or if you were issued a license with conditions or restricted uses.

Vehicle Owners - A law was passed in 2019 that authorizes school districts and municipalities to use stop-arm cameras on school buses to impose penalties on the owners of vehicles which pass a school bus while the school bus is stopped for the purpose of dropping off or picking up passengers and red lights on the school bus are flashing.

- First violation - penalty of \$250
- Second violation within 18 months - penalty of \$27